



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – Tpr. Caleb Crosswhite #327

Work Assignment: Troop/Division - A; Post/Unit – 5 - Dalton

INCIDENT REPORT # DPS00160160

Related Crash Reports: None ; ;

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 6/10/2024

Time: 1510 hours

Location: Post 5 Dalton

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Captain Shawn Prather #11, Cpl. Donnie Cochran #623 and Tpr. Caleb Crosswhite #327.

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 05/11/2024

Time: 1525 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

Tpr. Crosswhite was conducting speed enforcement on Interstate 75 southbound near mile marker 327 when he checked a dark colored Tesla at 96 MPH. Tpr. Crosswhite attempted to intercept the suspect with all emergency equipment activated, when the suspect accelerated, initiating a pursuit.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A If Yes, explain: Tpr. Crosswhite contacted the Troop A Communications Center by radio and informed them that he was making a traffic stop. The Communications Center received his call and Tpr. Crosswhite then provided the description of the vehicle and his location. Moments later, Tpr. Crosswhite notified the Troop A Communications Center that he was in a pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once Tpr. Crosswhite advised that he was in a pursuit, the Troop A Communications Center cleared the radio for emergency traffic before conducting a

broadcast of the pursuit to all surrounding Troopers. The Whitfield County 911 Center was also notified of the pursuit and assistance requested.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Interstate 75 southbound near mile marker 325. The pursuit continued south, entering Gordon County and the suspect then exited off at GA 136 (Exit 320). The suspect then proceeded east on GA 136 and visual contact was lost with the suspect. The pursuit lasted for approximately 4 minutes, 15 seconds and traveled a total distance of approximately 7.0 miles.

2. Were the trooper's actions during the pursuit objectively reasonable?

☐ Yes ☒ No If no, explain: Tpr. Crosswhite lost visual contact with the suspect once it turned east on GA 136. Tpr. Crosswhite stated that he observed a dark colored vehicle traveling north on Interstate 75 and proceeded north on Interstate 75 but apparently it wasn't the vehicle. Tpr. Crosswhite then discontinued the pursuit.

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: The pursuit entered Gordon County but no Post 43 Trooper assisted with the pursuit.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The suspect's high speed reckless driving supported a felony charge of fleeing and attempting to elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☐ Yes ☒ No If no, explain: Tpr. Crosswhite discontinued the pursuit over the radio but was accelerating at the time with no emergency equipment activated. Tpr. Crosswhite then deactivated the in-car camera and failed to capture the proper method of discontinuing the pursuit (deactivate emergency equipment, stop and proceed in an opposite direction).

5. Did the trooper appear to experience adrenaline rush, tunnel vision, or any other internal/external factors?

☐ No If Yes, explain: Tpr. Crosswhite stated that he experienced an adrenaline rush.

6. Did the trooper get into the danger zone due to adrenaline rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: Tpr. Crosswhite properly activated all of his emergency equipment while attempting to intercept the suspect.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: Traffic conditions on the roadways traveled during the pursuit would be described as moderate. The pursuit occurred during daylight conditions with clear skies, and the roadway surface was dry.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A If Yes, explain: Tpr. Crosswhite lost visual contact with the suspect once it turned east on GA 136. Tpr. Crosswhite stated that he observed a dark colored vehicle traveling north on Interstate 75 and proceeded north on Interstate 75 but apparently it wasn't the vehicle. Tpr. Crosswhite then discontinued the pursuit. Pursuing in emergency mode when the location of the suspect is unknown creates an additional danger to the public.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A If Yes, explain: Tpr. Crosswhite lost visual contact with the suspect and should have terminated the pursuit sooner.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The suspect traveled at high speeds and used all lanes as he fled. The suspect's actions demonstrated no regard for the safety of others and created a dangerous environment for the public and all involved.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: Tpr. Crosswhite lost visual contact with the suspect once it turned east on GA 136. Tpr. Crosswhite stated that he observed a dark colored vehicle traveling north on Interstate 75 and he proceeded north on Interstate 75, but apparently it wasn't the vehicle. Tpr. Crosswhite discontinued the pursuit over the radio but was accelerating at the time with no emergency equipment activated. Tpr. Crosswhite then deactivated the in-car camera and failed to capture the proper method of discontinuing the pursuit (deactivate emergency equipment, stop and proceed in an opposite direction).

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: This is Tpr. Crosswhite's seventh pursuit as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: Tpr. Crosswhite has received EVOC and Advanced EVOC Training. Tpr. Crosswhite has also received the annual Pursuit Liability Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: Tpr. Crosswhite properly activated all of his emergency equipment while attempting to intercept the suspect.

2. Areas for improvement.

☐ N/A

If Yes, explain: Tpr. Crosswhite needs to improve on properly discontinuing pursuit using the method he was trained and the sequence of the discontinuation shall be captured on the in-car recording system. Tpr. Crosswhite should have discontinued the pursuit sooner. Tpr. Crosswhite stated that he observed a dark colored vehicle matching the suspect's vehicle traveling north on Interstate 75 but apparently this was not the suspect. If Tpr. Crosswhite is not sure of the suspect's location, he should discontinue the pursuit immediately.

3. Other considerations.

☒ N/A

If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☐ N/A

If Yes, explain: Cpl. Cochran stated that Tpr. Crosswhite should have discontinued the pursuit much sooner and he should have not deactivated his camera until he has proceeded in the opposite direction.

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☐ N/A

If Yes, explain: Tpr. Crosswhite shall be issued a Letter of Instruction for violating the DPS Pursuit Policy 17.02.

Under 17.02.4 states,"

E. Terminating a Pursuit

1. Discontinuing a Pursuit

a. The pursuit shall be discontinued if, in the sworn member's opinion, the risk of continuing outweighs the danger of permitting the suspect to escape.

1) Under most circumstances the sworn member should exercise his discretion to discontinue a pursuit when:

a) The suspect is positively identified and there is no longer a need for immediate apprehension;

b) The pursued vehicle's location is no longer definitely known."

This LOI should also address the proper method of discontinuing pursuits and the importance of capturing the discontinuation event on the in-car recording system.

Captain Shawn Prather #11
Reviewing Officer

 CAPT. SHAWN PRATHER #11

6/19/2024
Date